



Anti-racism and Discrimination

Vehicle-for-Hire Training

Anti-racism and Discrimination

What is discrimination?

Canadian Human Rights Act defines discrimination as an action or a decision that treats a person or a group badly for reasons such as their race, age, or disability. The Ontario Human Rights Code specifically defines these 'reasons', or, prohibited grounds as:

- Age: Discrimination based on one's age
- Creed: Discrimination based on one's religious or other sincerely held beliefs
- Disability: A broad range and degree of conditions, some visible and some not visible which can be generally defined as, a physical or mental condition that limits a person's movements, senses, or activities
- Family and marital status: The status of being married, single, widowed, divorced, or separated and includes the status of living with a person in a conjugal relationship outside marriage
- Gender identity and gender expression: A person's internal and individual experience of gender and how they publicly present their gender
- Race and related grounds: Any distinction, conduct or action that is based on a person's race, which has the effect of imposing burdens not imposed upon others or which withholds or limits access to benefits available to others
- Receipt of public assistance: Discrimination based on receipt of social assistance such as Ontario Works, OSAP, ODSP, CPP, EI etc.
- Record of offences: Convictions and/or pardons under federal or provincial law
- Sex: Discrimination based on a person's biological sex, or gender
- Sexual orientation: The range of human sexuality from lesbian and gay, to bisexual and heterosexual. Sexual orientation is different from gender identity, which is protected under the ground of "sex"



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Discrimination towards an individual based on any of these grounds may result in Human Rights complaints and costly litigation. In a customer service environment, it can also result in negative publicity or damage to the company's reputation.

As mentioned earlier, bias is a generalization about a group of people that is based on personal characteristics or stereotypes. In a customer service environment, personal bias may result in a loss of business. In extreme cases, it could also result in lawsuits or Human Rights claims. These types of outcomes may be avoided through a better understanding of the concepts of equity and diversity.

As noted above, every person has a right to equal treatment with respect to services, goods, and facilities, without discrimination.

The Discriminatory Business Practices Act aims to prevent discrimination based on the protected attributes noted above of anyone who is employed in or conducting business in Ontario. Under this legislation, the following are discriminatory business practices:

1. Refusing to do business with a person where the refusal is due to a protected attribute of that person, or of another person with whom the individual has done business with.
2. Refusing to employ, appoint or promote a person; or a dismissal or suspension of employment where the refusal, dismissal or suspension is due to a protected attribute of that person, or of another person with whom the individual has done business with.
3. Entering a contract that includes a provision that one of the parties will refuse to do business with or employ another person due to a protected attribute.

In other words, Ontario businesses may not refuse service or employment, and may not enter contracts which would result in them engaging in discriminatory business practices.

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Types of Harassment

Harassment is a specific type of discrimination and can be defined as, engaging in a course of vexatious comment or conduct that is known or ought reasonably to be known to be unwelcome. Harassment becomes discrimination if it is based on any of the prohibited grounds under the Human Rights Code. Harassment because of sexual orientation has also been found to be a form of discrimination under the Code.

Harassment can take many forms including, but not limited to:

- Epithets, remarks, jokes or innuendos related to a protected ground
- Posting or circulating offensive pictures, graffiti or materials in print form, email or other electronic means
- Singling out a person for humiliating or demeaning “teasing” or jokes because they are a member of a protected group
- Comments ridiculing a person because of characteristics that are related to a protected ground

Which of the following do you think is an example of harassment?

- Criticizing a colleague’s cultural garb
- Making lewd jokes to a female employee
- Ribbing a colleague with a speech impediment for not responding to a question quickly enough

If you said, all of the above, you are correct! While these examples may seem innocuous on the surface, they can have a detrimental impact on a person’s dignity and sense of worth. Aside from creating potential exposure to legal action, harassment creates a “poisoned” work environment that can result in higher employee turnover.

The City of Toronto prohibits discrimination or harassment based on the prohibited grounds listed above, and any combination of these grounds. The Ontario Human Rights Code extends this prohibition to all businesses in Ontario – both in employment and customer service environments.

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Understanding Equity and Inclusion

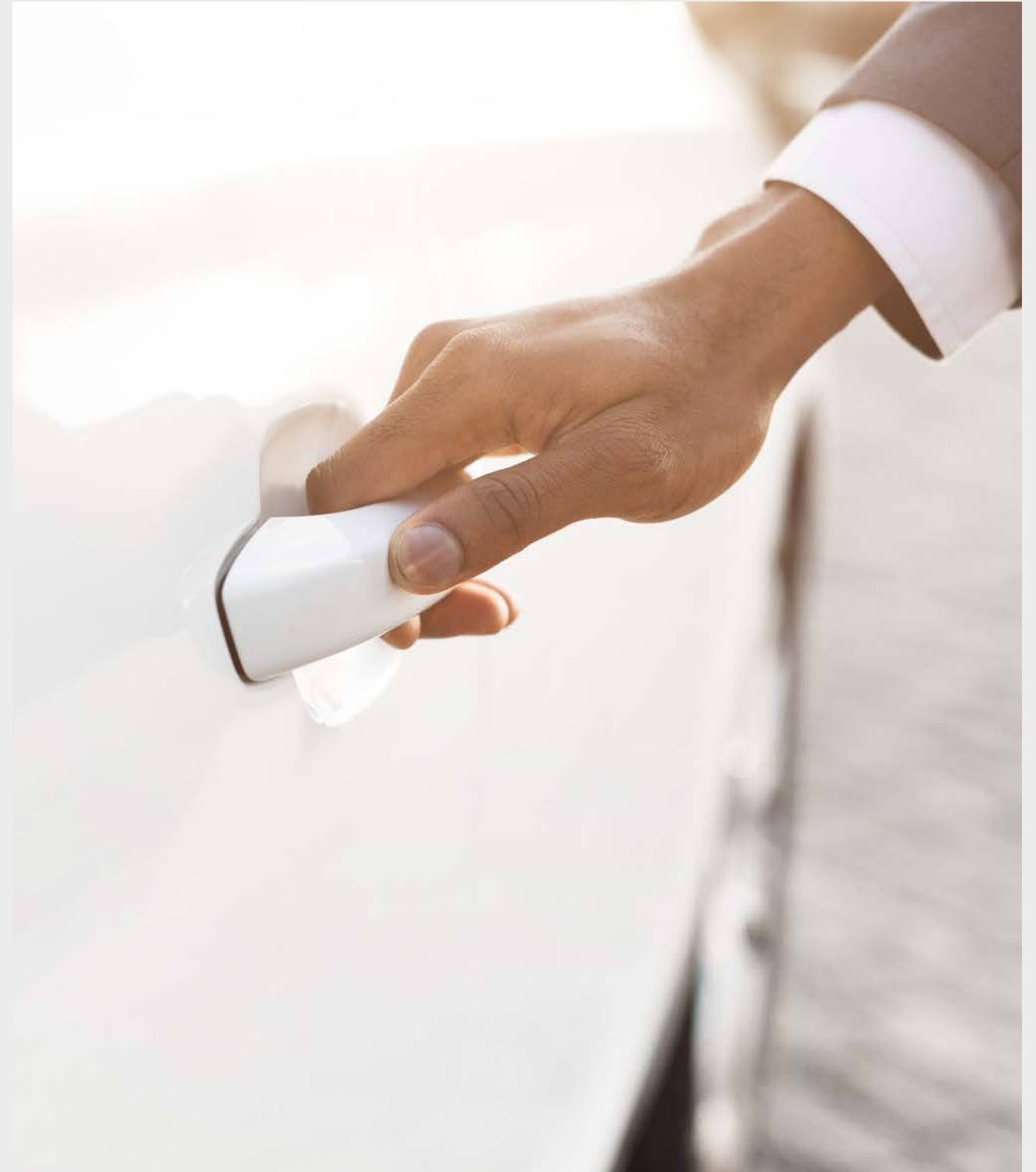
Diversity can be defined as, “The presence of a wide range of human qualities and attributes within a group, organization, or society.”

Equity is “a condition or state of fair, inclusive, and respectful treatment of all people.”

Inclusion can be defined as “a collaborative, supportive, and respectful environment.”

It is important not to confuse equity with equality, which is to treat all people the same without consideration for their differences. Equity considers the diversity of people in order to treat people in a way that results in them receiving the same, or equal, service as everybody else. Therefore, it does not necessarily mean treating everybody the same.

So, by considering the diversity of your customers, and ensuring equitable treatment of them, you will establish an environment of inclusion that respects their dignity, abilities, and right to equal treatment in the provision of services. Businesses that prioritize diversity and inclusivity are better prepared to serve customers of all kinds and statistically outperform their competition.



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Competing Human Rights

Despite your best efforts, conflicts may occasionally arise in a professional environment as more people understand and advocate for their rights. Depending on the circumstances the rights of two individuals may be at odds with each other.

Competing human rights are “situations where parties to a dispute claim that the enjoyment of an individual or group’s human rights and freedoms, as protected by law, would interfere with another’s rights and freedoms.” For instance, what happens when a driver-for-hire is severely allergic to the service dog of a passenger? Should they be able to deny service to that individual?

The Policy on Competing Human Rights was created by the Ontario Human Rights Commission to serve as a helpful tool for individuals and businesses to address such conflicts. It illustrates how to analyze and reconcile opposing rights. It instructs everyone involved to do the following:

- Show dignity and respect for one another
- Encourage mutual recognition of interests, rights, and obligations
- Facilitate maximum recognition of rights, wherever possible
- Help parties to understand the scope of their rights and obligations
- Address stigma and power imbalances and help to give marginalized individuals and groups a voice
- Encourage cooperation and shared responsibility for finding agreeable solutions that maximize enjoyment of rights

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Businesses must implement policies and procedures that communicate how goods or services will be provided to customers with disabilities in a manner that is consistent with the principles of dignity, independence, integration, and equal opportunity.

Customer use of personal assistive devices, service animals or support persons should be included, and policies should also communicate any measures provided by the business to assist customers in accessing its goods and services. Such measures may include changing a company policy, providing documents in alternate formats, or perhaps providing an assistive device such as a scooter with a basket for use in a store.

When communicating with a customer with a disability, human rights and accessibility laws require that a provider of goods or services do so in a manner that takes their specific needs into account to communicate with them effectively. This can be accomplished in a number of ways.

- Make the original communication more accessible. This could be as simple as using a plain text document or adding closed captioning to a video.
- Change the usual method of communication. Examples of alternate formats include providing large print, braille or even audio formats for customers with vision impairments or blindness.
- Use assistive devices or services. TTY devices are a great example of an assistive device for telephone communication with persons who are hard of hearing.



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Addressing Unwelcome Behaviour

Up until now we've focused on how you, as a driver, can avoid and prevent discrimination toward your passengers, but what if a passenger is harassing you? For example, a passenger utters a racial slur at you because you missed a turn, or a drunken passenger repeatedly touches your arm and asks for your telephone number.

Just like your passengers, you have the right to be treated with dignity and respect and to be free of harassment and discrimination.

If it becomes necessary to address such behaviour, control your emotions and try not to express anger. Be polite and communicate respectfully and clearly. Avoiding the use of argumentative language let the passenger know their behaviour is unwelcome and ask them to stop. At all times remember you are a professional driver and safety is a top priority. If the passenger is aggressive, or the situation escalates, pull your vehicle off the road, stop in a safe location, and ask the passenger to exit the vehicle. If necessary, call the police.



Conclusion

Ultimately, the most important thing for business owners, managers, and service providers to remember is that the Code stipulates that everyone has the right to be free from discrimination (both intentional and unintentional) in society's social areas (employment, housing, services, unions, vocational associations, and contracts) as well as when receiving goods or services or using facilities. They also have the right to equal treatment in employment and to contract on equal terms free of discrimination. You have a legal responsibility to respect these rights and ensure that no discrimination or harassment occurs when you provide your service.

